

THE ASSAM TAXATION (LIQUIDATION OF ARREAR DUES) (AMENDMENT) ACT, 2019

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State of Assam - Act

THE ASSAM TAXATION (LIQUIDATION OF ARREAR DUES) (AMENDMENT) ACT, 2019

ASSAM

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THE ASSAM TAXATION (LIQUIDATION OF ARREAR DUES) (AMENDMENT) ACT, 2019

Act 18 of 2019

Published in Assam Gazette on 31 December 2019

Commenced on 31 December 2019

[This is the version of this document from 31 December 2019.]

An Act further to amend the Assam Taxation (Liquidation of Arrear Dues) Act, 2005.

Preamble:- Whereas it is expedient further to amend the Assam Taxation (Liquidation of Arrear Dues) Act, 2005, hereinafter referred to as the principal Act, in the manner hereinafter appearing;

It is hereby enacted in the Seventieth Year of the Republic of India as follows: -

1.

Short title, extent and commencement:-

(1)

This Act may be called the Assam Taxation (Liquidation of Arrear Dues) Act, 2019.

(2)

It shall have the like extent as the principal Act.

(3)

It shall come into force at once.

2.

Amendment of Preamble:- In the principal Act, for the existing Preamble, the following shall be substituted, namely: -

"Preamble Whereas it has become expedient to provide for liquidation of long outstanding dues relating to tax, penalty and interest, as the case or cases as may be, under the Assam Value Added Tax Act, 2003, the Central Sales Tax Act, 1956, the Assam Professions, Traders, Callings and Employments Taxation Act, 1947, the Assam Taxation (On Specified Lands) Act, 1990, the Assam Agricultural Income Tax Act, 1939, the Assam Electricity Duty Act, 1964 and the repealed tax Acts as referred to in sub-section (I) of section 174 of the Assam Goods and Services Tax Act, 2017 by offering one time incentive in the form of waiver of the balance portion of qualifying arrear dues remaining after payment of the prescribed percentage of the total dues within the stipulated dateline;"

3.

Amendment of Section 1:-

In the principal Act, in section 1, in sub-section (3), for the section 1? word, figures and punctuation mark, "31 51 March, 20 17", the word, figures and punctuation mark, "31st March, 2020" shall be substituted.

Amendment of 4. In the principal Act, in section 2, in sub-section (1), - section z. (i) for the existing clause (b), the following shall be substituted, namely:-

"(b) "Outstanding dues of arrear tax, penalty and interest" means unpaid amounts as on the date of coming into force of this Act on account of tax, interest and penalty by an applicant as per statutory orders for periods up to 30th. June, 2017 under an; provision of the relevant Acts passed on or before 30 September, 20 19 or by such later date as the State Government may, by notification in the Official Gazette, specify from time to time and also includes further calculable interest as per the relevant Acts on the involved principal amounts up to the date of application within the meaning of section 5 of this Act;"

(ii)

for the existing clause (d), the following clause shall be substituted, namely: -

"(d) "Relevant Acts" means any one or more of the following Acts, namely: -

(i)

the Assam Value Added Tax Act, 2003, (Assam Act No. VIII of 2005);

(ii)

the Central Sales Tax Act, 1956, (Central Act 74 of 1956);

(iii)

the Assam Professions, Trades, Callings and Employments Taxation Act, 1947 (Assam Act No. VI of 1947);

(iv)

the Assam Taxation (On Specified Lands) Act. 1990, (Assam Act No . XII of 1990) ;

(v)

the Assam Agricultural Income Tax Act, 1939, (Assam Act No . IX of 1939);

(vi)

the Assam Electricity Duty Act, 1964 (Assam Act No. XXX of 1964); and

(vii)

the repealed tax Acts as mentioned in sub-section (I) of section 174 of the Assam Goods and Services Tax Act. 2017 (Assam Act No. XX VIII of 20 17)." Amendment of Section 4. - 5. In the principal Act. for the existing section 4, the following shall be substituted, namely:- "Eligibility condition.

4.

Subject to other provisions of this Act, an applicant shall be eligible to make an application under this Act for all his outstanding dues in respect of amounts assessed for the periods up to 30th June, 2017. and levied against him on or before 30th September, 2019 but not lying in dispute before any statutory forum or the Hon 'ble Gauhati High Court or the Hon ' ble Supreme Court of India as on the date of application under the Act."

Substitution for the existing Schedule, In the principal Act the following Schedule shall be substituted, namely: -

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